

IN THE HONORABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA
SITTING IN ITS OCTOBER TERM, A.D. 2021

BEFORE HIS HONOR: FRANCIS S. KORKPOR, SR.....CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE.....ASSOCIATE JUSTICE
BEFORE HER HONOR: SIE-A-NYENE G. YUOH.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: JOSEPH N. NAGBE.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: YUSSIF D. KABA.....ASSOCIATE JUSTICE

His Honor Ousman F. Feika, Assigned Circuit)
Judge, Second Judicial Circuit, Grand Bassa)
County and Stephen S. Nahn of the City of)
Buchanan, Grand Bassa County, Liberia.....)
.....Appellants)
Versus) APPEAL

ArcelorMittal Liberia Ltd, by and thru its Chief)
Executive Officer and all other authorized officers)
of the City of Buchanan, Grand Bassa County,)
Liberia.....Appellee)

GROWING OUT OF THE CASE:

ArcelorMittal Liberia Ltd, by and thru its Chief)
Executive Officer and all other authorized officers)
of the City of Buchanan, Grand Bassa County,)
Liberia.....Petitioner)

Versus

) PETITION FOR A WRIT OF
) CERTIORARI

His Honor Ousman F. Feika, Assigned Circuit)
Judge, Second Judicial Circuit, Grand Bassa)
County and Stephen S. Nahn of the City of)
Buchanan, Grand Bassa County, Liberia.....)
.....Respondents)

GROWING OUT OF THE CASE:

ArcelorMittal Liberia Ltd, by and thru its Chief)
Executive Officer and all other authorized officers)
of the City of Buchanan, Grand Bassa County,)
Liberia.....Movant)

Versus

) MOTION TO DISMISS

Stephen S. Nahn of the City of Buchanan, Grand)
Bassa County, Liberia.....Respondent)

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7) ACTION OF DAMAGES

) FOR WRONG

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The records and the pleadings filed by the parties in this case show that on April 1, 2016, Stephen S. Nahn, the respondent herein suffered occupational injury leading to the amputation of his right arm and was taken to the J.F.K. Medical Center where he was treated at the cost of the petitioner under its insurance scheme. Thereafter, the petitioner in consonance with the law on such matters, reported the respondent's injuries to the National Social Security Corporation (NASSCORP) and the latter conducted medical assessment on the respondent pursuant to Section 89.26 of the National Social Security & Welfare Corporation Act of 2016 30.1(b) of the Decent Work Act of 2015. The said law as are quoted herein below, to wit.

Section 89.26 of the National Social Security & Welfare Corporation Act f 2016 provides that:

“any person employed by an employer to whom this part applies, who suffers personal injury caused by an accident, including any commuting accident, on or after the date of the coming into operation of this part, being an accident arising out of and in the course of his employment, shall be entitled to disablement benefit if as a result of that injury he suffers loss of physical or mental faculty which is likely to be permanent or temporary.”

On April 1, 2019, approximately three years after his injury, the respondent filed an action of damages for wrong in the Second Judicial Circuit Court for Grand Bassa County against the petitioner, complaining occupational injuries and requesting the trial court to hold the petitioner liable in the amount of (One Million Five Hundred Thousand United States Dollars) as general damages. On April 11, 2019, the petitioner filed its answer to the complaint and after pleadings rested, the petitioner on November 18, 2020, filed an eight (8) count motion to dismiss alleging that the trial court lack subject matter jurisdiction over a matter regarding workmen's compensation which is clearly defined by the Decent Work Act of 2015. On December 4, 2020, the respondent filed resistance to the motion requesting the trial court to deny the motion on the basis that the action filed by the respondent is a civil action to recover damages and that the trial court has jurisdiction to hear an action of damages for wrong.

On December 17, 2020, the trial court ruled on the motion and the resistance thereto wherein it denied the motion to dismiss for reasons that the trial court has general jurisdiction over all cases to which another court has not been given exclusive jurisdiction; and that in this case, the trial court has jurisdiction over the persons, the thing involved and the subject matter now before it. We quote herein below relevant excerpt of the trial court's ruling to, wit:

This Court says that it relies upon a long line of opinions of the Honorable Supreme Court of Liberia, that the Court is under obligation to firstly determine its jurisdiction to hear and dispose of the particular area. Given this definition, and by statutory provisions, particularly Chapter 3, section 3.2 of the New Judiciary Law of Liberia. The Second Judicial Circuit Court of Grand Bassa County is properly situated and has jurisdiction of the subject matter out of which this motion grows. As contemplated under section 3.2 of the Judiciary Law, damages for wrong is a civil action over which this court can and shall exercise jurisdiction as long as a complaint emanating therefrom falls within the territorial confines of the Second Judicial Circuit of the Liberian Judiciary, and that the parties and the thing complained of are domiciled thereafter....

WHEREFOR AND IN VIEW OF THE FOREGOING FACTS AND CIRCUMSTANCES herein stated above, Movant's motion to dismiss for lack of jurisdiction of the subject matter is hereby denied and dismissed. This matter is ordered proceeded with as in keeping with law. AND IT IS HEREBY SO ORDERED.

The petitioner noted exceptions to the trial court's ruling and on January 13, 2021, filed a twenty-two (22) count petition praying for the issuance of the writ of certiorari before the Justice in Chambers over the October 2020 Term of the Supreme Court. The petitioner basically alleged that the trial court lacks subject matter jurisdiction over this case, that a complaint arising out of occupational injury is governed by the Decent Work Act of 2015; that the respondent having commenced receiving benefits under Section 89.26 of the National Social Security & Welfare Corporation Act of 2016 and Section 30.1(b) of the Decent Work Act of 2015 cannot maintain an action of damages against the petitioner who is strictly

liable to the respondent under the Decent Work Act; and that the trial court in denying the petitioner's motion is in violation of Section 33.16 of the Decent Work Act which provides that the liability of employer (in this case, the petitioner) is exclusive and in lieu of any other liability.

On January 15, 2021, the Justice in Chambers reviewed the petitioner's petition and cited the parties to a conference scheduled on February 1, 2021, for the purpose of granting the Justice in Chambers the opportunity to gain insight into the controversy between the parties leading to a decision as to whether or not to issue or deny the issuance of the writ. Thereafter, on February 1, 2021, the Justice ordered the respondent to file returns to the petition on or before February 9, 2021, and also ordered a stay on all proceedings and/or actions pending the outcome of a hearing and determination on the petitioner's petition and the respondent's returns.

On February 15, 2021, the respondent filed a twenty-nine (29) count returns alleging inter alia, that the writ of certiorari was inapplicable to the petitioner because the trial court has subject matter jurisdiction over an action of damages for wrong; that Section 3.2 of the New Judiciary Law, and which provision of the law the trial court also relied upon in its interlocutory ruling, gives the trial court jurisdiction to hear this case; and that Section 33.16 of the Decent Work Act does not prohibit an employee from suing his/her employer for injuries sustained, in subsequent action in addition to receiving compensation under the workmen's compensation scheme through NASSCORP.

On February 22, 2021, the Justice in Chambers assigned the petition for hearing and entertained oral arguments. Having carefully examined the facts contained in the records and considered the trial court's ruling now under review there is only one (1) issue dispositive of these proceedings, to wit:

Whether or not the trial court lacks subject matter jurisdiction over this case?

It is undisputed and conceded by all parties that the respondent sustained injuries while in the employ of the petitioner and that he has started receiving a monthly disablement payment pursuant to Section 89.26 of the National Social Security & Welfare Corporation Act of 2016 and Section 39.1(b) of the Decent Work Act of 2015 already quoted herein above.

In view of the aforesaid, this Court will not be remiss to state that Part IV chapters 30, 31, and 33 of the Decent Work Act (2015) which deal with Workers Compensation, Compensation for Occupational Injury and the Procedure for Compensations, respectively, are not only applicable to this present case, but same are the controlling laws in matter relating to injuries arising during the course of employment.

Section 30.2 of the Decent Work Act provides that this chapter (Workers' Compensation) shall apply to employees, the respondent in this case, who are covered by an injury scheme administered by the National Social Security and Welfare Corporation (NASSCORP) under the National Social Security and Welfare Law as amended. Therefore, the Permanent Disability schedule provided for in Chapter 30 of the Decent Work Act is controlling payment scheme relating to occupational injuries and all courts including the Supreme Court are bound to take judicial notice of this law.

Also, Chapter 31 section 31(a) of the Decent Work Act which specifically deals with Compensation for Occupational injuries provides that every employer shall in accordance with the provisions of this Chapter pay or provide compensation or secure compensation to each employee (or to his or her dependents) for the disability or death of such employee caused by an injury arising in the course of his/her employment; such compensation shall be paid, provided, or secured without regard to fault as a cause of the injury. It is stated further in section 31.4 31.4(a) (b) and (c) that;

- a) "When an employee suffers permanent partial disability as the consequence of a compensable occupational injury, compensation shall be based on the formula set opposite the injury listed in schedule A, attached.
- b) In the case of a permanent partial disability, the amount of the compensation that shall be paid the injured employee shall be based on the formula set opposite the injury listed in Schedule A, attached.

In case of a permanent partial disability of a member or limb of the body that does not involve the loss of such member or limb, the compensation shall be commensurate with the proportional loss of earning capacity, but not exceeding 50 percent of the lump sum payment for that member or limb as appears in Schedule A; provided, however, that total permanent loss of a member or limb shall be compensated on the basis of the loss of such member or limb."

As to the respondent, he was informed by the 384th Medical Board of the NASSCORP, that based on the assessment of injury, his status is classified as '48% permanent partial disability' under the employment injury scheme of NASSCORP, and is entitled to permanent disablement benefit for life, pursuant to section 89.28 of the NASSCORP Act. It is undisputed that the respondent is receiving monthly benefits from the NASSCORP, and will continue to do so for the rest of his natural life.

In addressing the issue of an employer's liability for such an injury suffered by the respondent, the applicable provision of the Decent Work Act, clearly states that the employer liability is exclusive and is insulated from other lawsuits or actions of damages like the one filed by the respondent before the 2nd Judicial Circuit Court, Grand Bassa Court. Section 33.16 of the Decent Work Act specifically speaks to the liability of an employer as follows;

"the liability of an employer under this chapter shall be exclusive and in lieu of any other liability whatsoever on his or her part, under the laws of Liberia or of any other country, to his or her disabled or deceased employee and to the employee's personal or other legal representatives, his or her spouse, children, parents, dependents; or next of kin, or to anyone otherwise entitled to recover damages, at common law or otherwise, on account of such disability or death."

Notwithstanding the above provisions of the law, the respondent does not deny that he is receiving compensation from the NASSCORP under its injury compensation scheme but his purpose for seeking damages for wrong against the petitioner is on the basis that the compensation under the workman compensation scheme is insufficient to recompense him for the injury he sustained, that is, the amputation of his right arm.

It is the law hoary with age, that:

“it is not within the province of the courts to include the Supreme Court to add or subtract from legislation where the meaning is so plain. To declare what the law is, or has been, is a Judicial power; to declare what the law shall be is legislative. *Shannon v. Liberia Trading Corporation*, 7LLR 66 81(1974), *Buchanan v. Arrivets*, 9LLR 16 19 (1945), *George v. Republic*, 14LLR 158 159 (1960), *Multinational Gas and Petrochemical Company v. Crystal Steamship Corporation*, 27 LLR, 198 205 (1978), *Vijayaraman v. Xoanon*, 42LLR, 47 56(2004).

In the present case the Legislature has already adopted and passed Part IV, Chapters 30, 31, and 33 of the Decent Work Act (2015) which deal with Workers' Compensation, Compensation for Occupational Injury, and the Procedure for Compensations, respectively, as the controlling law in matters relating to injuries arising during the course of employment. Besides, the Supreme Court has recognized that disputes arising out of labor matters are not cognizable before the Circuit Courts, but rather the Labor Court or the Ministry of Labor. *Lamin et al. v. Safe the Children*, 40 LLR 96, 100 (2000).

Thus, we hold that the trial court's denial of the petitioner's motion to dismiss for want of subject matter jurisdiction is erroneous, as Part IV, chapters 30, 31, and 33 of the Decent Work Act (2015) is the controlling law in matters relating to injuries arising during the course of employment. Thus, certiorari will lie to correct the erroneous ruling of the trial court.”

WHEREFORE AND IN VIEW OF THE FOREGOING, the alternative writ of certiorari is hereby sustained, and the peremptory writ ordered issued. The Clerk of this Court is hereby ordered to send a mandate to the lower court ordering the judge presiding therein to resume jurisdiction over this case and gave effect to the Judgment of this Opinion. Costs are ruled against the appellant/respondent. AND IT IS HEREBY SO ORDERED.

When this case was called for hearing, Counsellor Sylvester D. Rennie of Legal Watch Inc. appeared for the appellants. Counsellor Stephen B. Dunbar, Jr. of Dunbar & Dunbar, Inc. appeared for the appellee.